

{{FIRM_NAME}}

WASHINGTON

253-215-1271

7602 BRIDGEPORT WAY W, SUITE 3B
LAKEWOOD, WASHINGTON 98499

FAX: (877) 813-6042

CONTINGENCY FEE AGREEMENT

THIS IS AN AGREEMENT BETWEEN _____, (hereinafter "Client") and {{FIRM_NAME}} (hereinafter "Law Firm" or "Attorney"). Unless a different Agreement is subsequently made in writing, this Agreement alone shall govern Attorney's and Client's respective rights and responsibilities. Attorney's representation is limited to above person named as "Client". Client retains {{FIRM_NAME}} to prosecute a claim against any party who may be liable for damages as a result of a motor vehicle collision/premise liability action occurring on _____ and agree as follows:

1. ATTORNEY'S FEE SHALL BE:

- a. **OF ALL GROSS AMOUNTS RECOVERED FROM ANY SOURCE,** SPECIFICALLY INCLUDING, BUT NOT LIMITED TO, ANY RECOVERY FROM THIRD PARTIES, UNINSURED MOTORIST, AND/OR UNDERINSURED MOTORIST COVERAGE, BAD FAITH, AND ANY RECOVERY FROM ANY OTHER PERSON OR ENTITY
- b. **FORTY PERCENT (40%) OF ANY SUCH AMOUNTS RECOVERED AFTER FILING OF A FORMAL LAWSUIT OR THE INITIATION OR COMMENCEMENT OF BINDING ARBITRATION.**
- c. **NO ATTORNEY FEE SHALL BE CHARGED BY THE ATTORNEY IF THERE IS NO RECOVERY ON THE CASE.**

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2. **COSTS ADVANCED BY ATTORNEY ARE EXPENSES TO PROSECUTE THE CLAIM AND ARE TO BE DEDUCTED FROM THE RECOVERY AFTER ATTORNEYS' FEE.** Costs will include a minimum charge of Three Hundred Fifty Dollars (\$350.00) as reimbursement for general office expenses such as photocopies (in excess of 100 pages), long distance, facsimile, postage, courier/messenger fees, investigation expenses, medical/nurse consultant fees, photography and video fees, evidence storage fees, filing fees, service of process fees, bond fees, witness fees, expert fees, records fees, legal research.
3. **APPROVAL NECESSARY FOR SETTLEMENT:** No settlement of any nature shall be made without Client's approval, and Client agrees to make no settlement or offer of settlement without first settling with attorney. Client does, however, hereby agree to accept an offer of the entirety of insurance policy limits available for Client's claim(s).
4. **DISTRIBUTION OF FUNDS** shall be made after monies are received, deposited and cleared, and lien holders are satisfied. Client shall be responsible for any debts or liens owed and related to the claim that Attorney is unaware of. Client shall be provided with a written, itemized disbursement of all monies received and paid on behalf of client's claim. Any funds received shall be disbursed first to pay costs (with associated interest and fees) incurred in prosecuting Client's case; second to Attorney to pay legal fees calculated based upon gross recovery; third to medical facilities, health insurance, Medicare, Medicaid, and any lienholders, and the remainder shall be disbursed to Client.
5. **NO GUARANTEE AS TO RESULT:** Client acknowledges that Attorney has made no warranties or guarantees as to the success, value, timing and outcome of this claim.

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6. **WITHDRAWAL AND DISCHARGE:** Withdrawal by the Attorney may be made at any time with cause, upon written notice to client's last known address. Reasons for termination by the Attorney include:

1. *The Client persists or persisted in a course of action involving the Attorney's services that the lawyer reasonably believes is criminal or fraudulent;*
2. *The client insists upon pursuing an objective that the Attorney considers repugnant or imprudent;*
3. *The Client mistreats the staff at {{FIRM_NAME}}.*

Clients also have the right to discharge Attorney at any time upon written notice to Attorney. Attorney shall have 72 hours in which to provide Client a copy of Client's complete file. In addition to any medical expenses incurred by Client, Client will also be responsible for any costs associated with the copying and delivery of the file post termination.

7. **ATTORNEY'S LIEN:** Client hereby gives and assigns to attorney an irrevocable lien on any sum that client becomes entitled to receive, to secure Attorney's compensation and any costs advanced by Attorney, as well as any costs, interest and/or fees associated with funding of costs by a financial institution pursuant to applicable provisions of this agreement. Client further understands that in the event of termination of the Attorney-Client relationship, the reasonable value of Attorney's services shall be the greater of five hundred dollars (\$500.00) per hour, the applicable percentage of this agreement or reasonable value of paralegal services of (\$250.00) per hour. Should client hire new counsel, Attorney is entitled, at a minimum, to a pro rata share of the attorneys' fees recovered based on relative work performed, reputation of attorneys, length of representation, and any other relevant factors. If no recovery is obtained, Attorney will receive no fee for professional services.

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8. **OTHER LEGAL COUNSEL** may be used or employed at Attorney's discretion and expense to prosecute or appear on behalf of Client's claim. Any legal counsel associated at Attorney's discretion shall be paid out of Attorney's fees client will not pay any additional Attorney's Fees.
9. **LOANS:** Pursuant to the Washington State Bar, Attorney may not LOAN OR ADVANCE monies to client.
10. **ANY AND ALL MEDICAL EXPENSES INCURRED, CLAIMS, OR LIENS** by the Client are payable by the Client and the sole obligation of the Client. Attorneys must withhold funds from a client's recovery in which a third-party creditor has a claim or lien against the funds. Client remains ultimately responsible to ensure that all medical bills are paid as attorneys may be unaware of the existence of medical bills or unpaid copays.
11. **SERVICES NOT COVERED BY THIS AGREEMENT:** If additional legal services are necessary in connection with Client's claim(s), and Client requests attorney to perform such services, additional fee arrangements must be made by Attorney and Client.
12. **BANKRUPTCY PROVISIONS:** Client represents to Attorney that Client is not presently, nor do they contemplate filing for Bankruptcy protection; that they will inform Attorney should such a course of action be contemplated in the future.

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**13. LIENT'S RECEIPT OF AGREEMENT AND
ACKNOWLEDGMENT OF TERMS:** Client acknowledges that
he/she have read and fully understand all of the terms and
conditions of this Agreement and upon execution thereof. They
are further informed that if they wish to do so, they may seek
outside review of this contract by another lawyer.

DATED _____

AGREED AND ACCEPTED

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